

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lily Kim	Team: Squad #06	CCRB Case #: 202002571	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/27/2020 7:30 PM	Location of Incident: In front of 3275 Richmond Avenue	18 Mo. SOL 5/4/2022	Precinct: 122		
Date/Time CV Reported Fri, 03/27/2020 8:05 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/06/2020 11:30 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Kristen Caldararo	30512	938148	122 PCT
2. POM Jadd Zahrieh	29008	965635	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Kristen Caldararo	Discourtesy: Police Officer Kristen Caldararo spoke discourteously to § 87(2)(b)	
B . POF Kristen Caldararo	Abuse: Police Officer Kristen Caldararo stopped § 87(2)(b)	
C . POF Kristen Caldararo	Abuse: Police Officer Kristen Caldararo interfered with § 87(2)(b) use of a recording device.	
D . POF Kristen Caldararo	Force: Police Officer Kristen Caldararo used physical force against § 87(2)(b)	
E . POF Kristen Caldararo	Abuse: Police Officer Kristen Caldararo threatened to arrest § 87(2)(b)	
F . POF Kristen Caldararo	Discourtesy: Police Officer Kristen Caldararo spoke discourteously to § 87(2)(b)	
G . POF Kristen Caldararo	Discourtesy: Police Officer Kristen Caldararo acted discourteously toward an individual.	
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 2, 2020, § 87(2)(b) filed the following complaint over the phone with IAB. IAB log § 87(2)(b) was received at the CCRB on April 6, 2020.

On April 23, 2020 at approximately 7:30 p.m., § 87(2)(b) walked to McDonald's, located at 3275 Richmond Avenue in Greenridge Plaza in Staten Island, with his three unidentified children. § 87(2)(b) observed approximately 30 individuals on motorcycles in the plaza parking lot. PO Kristin Caldararo of the 122nd Precinct spoke with one of the individuals on a motorcycle. § 87(2)(b) approached PO Jadd Zariah of the 122nd Precinct and asked if it was okay for so many people to be gathered together given the Emergency Order, and PO Caldararo responded, "Mind your fucking business." (**Allegation A—Discourtesy**, § 87(2)(g)) After the short interaction, § 87(2)(b) and his children went into the McDonald's. When they exited the McDonald's, § 87(2)(b) started to take a photograph of the officers and the motorcyclists. PO Caldararo turned around and grabbed § 87(2)(b) phone out of his hand (**Allegations B and C—Abuse of Authority**, § 87(2)(g)) PO Caldararo allegedly grabbed § 87(2)(b) right forearm for approximately a minute (**Allegation D—Force**, § 87(2)(g)) PO Caldararo stated that § 87(2)(b) was going to jail and asked him for his ID (**Allegation E—Abuse of Authority**, § 87(2)(g)) PO Zariah told PO Caldararo to return the phone to § 87(2)(b) and § 87(2)(b) began to walk away with his children. PO Caldararo followed them through the parking lot and called § 87(2)(b) a "fucking loser" (**Allegation F—Discourtesy**, § 87(2)(g)) PO Caldararo pointed her middle finger at § 87(2)(b) daughter (**Allegation G—Abuse of Authority**, § 87(2)(g)) then turned around and walked away. No arrests or summonses were made during the incident. § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

Cellphone footage has been obtained of this incident. § 87(2)(g), § 87(4-b)

§ 87(2)(b)

Attempts were made to obtain surveillance footage from the McDonald's, but the footage had since expired.

Findings and Recommendations

Allegation A—Abuse of Authority: PO Kristin Caldararo spoke discourteously to § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) testified (**BR 01**) that on March 27, 2020 at approximately 7:30 p.m., he and his three unidentified children walked to McDonald's located at 3275 Richmond Avenue in Staten Island. § 87(2)(b) observed unidentified individuals on motorcycles interact with PO Caldararo and PO Zariah, who stood by a marked police vehicle in front of the McDonald's. § 87(2)(b) approached PO Zariah and pointed out that they should be socially distanced. PO Caldararo told § 87(2)(b) to "mind [his] fucking business." At that point, § 87(2)(b) turned around.

§ 87(2)(b) refused to identify his children or allow them to provide statements.

PO Caldararo confirmed that (**BR 02**) there were people on motorcycles and that she interacted with an unidentified individual when § 87(2)(b) approached her. She did not remember anything about the conversation before § 87(2)(b) walked away. PO Caldararo did not recall if she ever told § 87(2)(b) to "mind his fucking business." She testified that she may have used profanity towards § 87(2)(b) but was not certain if she did or what she said.

PO Zariah (**BR 03**) confirmed that he and PO Caldararo responded to an event regarding visibility

patrol at the Greenridge Plaza. There was a group of approximately ten people on motorcycles. One individual, who remains unidentified, spoke with PO Caldararo and PO Zahrieh near the McDonald's when § 87(2)(b) approached them and expressed concerns about social distancing. PO Zahrieh did not recall if PO Caldararo ever told § 87(2)(b) to "mind his fucking business," either during this initial interaction or the second one. PO Zahrieh did not remember if PO Caldararo used any profanity towards § 87(2)(b).

DAO-DCT Case number 2017-17005 states that the tribunal has held that profane remarks, made during stressful situations or while an officer is trying to get a chaotic situation under control, are not misconduct (**BR 04**). Officers are prohibited from using discourteous or disrespectful remarks regarding another person's ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability, Patrol Guide Procedure 203-09 (BR 05). The NYPD is committed to accomplishing its mission by treating every citizen with compassion, courtesy, professionalism and respect. Officers pledge to value human life, respect the dignity of each individual and render our services with courtesy and civility, Patrol Guide Procedure 200-02 (BR 06).

§ 87(2)(b) testified that PO Caldararo told him to "mind his fucking business" during the initial interaction, before the videos were recorded by § 87(2)(b) and his daughter. PO Caldararo and PO Zahrieh did not recall if PO Caldararo made that statement. However, PO Caldararo stated that she "may have" used profanity. PO Caldararo and PO Zahrieh both confirmed that details from § 87(2)(b) statement that were unrelated to the allegations, such as the sequence of events and the description of unidentified witnesses, were accurate. PO Caldararo did not deny using profanity, and the investigation credits § 87(2)(b) statement. As confirmed by PO Caldararo, PO Zahrieh, and § 87(2)(b) this first interaction did not escalate, and § 87(2)(b) walked away. PO Caldararo's use of the phrase was not in the midst of a stressful situation or for any law enforcement purpose and cannot be justified according to the standards set by DCT Case number 2017-17005.

§ 87(2)(g) PO Caldararo acknowledged she may have used profanity and that PO Caldararo and PO Zahrieh confirmed that details unrelated to the allegation were accurate, § 87(2)(g)

Allegation B—Abuse of Authority: PO Kristen Caldararo stopped § 87(2)(b)
Allegation C—Abuse of Authority: PO Kristin Caldararo interfered with § 87(2)(b) use of a recording device.

In cellphone video filmed by § 87(2)(b) (**BR 07**), PO Caldararo tells § 87(2)(b) to put his phone down, and then immediately takes the phone from him.

§ 87(2)(b) testified that he and his children went to the McDonald's. When they came out, the officers were still outside with the motorcyclists. PO Caldararo stood with her back toward § 87(2)(b). When he was about five to ten feet from the officers, he took a photograph of the officers. PO Caldararo turned around and saw him take the picture. PO Caldararo screamed something at § 87(2)(b) as she walked up to him. § 87(2)(b) and § 87(2)(b) daughter began to record videos on their phones. PO Caldararo snatched § 87(2)(b) phone out of his hand. PO Caldararo did not say anything before or as she took the phone out of his hand.

PO Caldararo stated that § 87(2)(b) left the interaction for approximately five minutes and returned, yelling and screaming again about social distancing and coronavirus. When § 87(2)(b) returned, he approached the officers from behind, holding his phone out to record the officers. § 87(2)(b) did not commit any violations by recording the interaction. PO Caldararo asked § 87(2)(b) to leave

multiple times and he did not. PO Caldararo did not know how many times she told him to leave. § 87(2)(b) was irate and waved his arms around, so PO Caldararo was concerned that § 87(2)(b) was going to use his phone as a weapon. At some point, PO Caldararo and § 87(2)(b) were two feet apart, but she did not remember if § 87(2)(b) was two feet away from her when he waved his arms around with his phone in his hand.

PO Zahrieh's statement was consistent with PO Caldararo's with the following exceptions. PO Zahrieh did not remember when § 87(2)(b) started to record, but when PO Zahrieh saw § 87(2)(b) the second time, § 87(2)(b) was recording. PO Zahrieh did not remember if § 87(2)(b) said anything as he approached them the second time. PO Caldararo did not tell PO Zahrieh why she took § 87(2)(b) phone out of his hand during or after the incident. PO Zahrieh did not recall how close § 87(2)(b) stood to them.

PO Caldararo was the assigned recorder and did not have any entries in her memo book. She did not prepare any documentation of the incident, including a stop report.

Individuals have a right to lawfully observe and/or record police activity including, but not limited to detentions, searches, arrests or uses of force. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/videotaping. In the above situation, members of service may not (1) Threaten, intimidate, or otherwise discourage an observer from recording the police officer's activities; or (2) Intentionally block or obstruct cameras or other recording devices when there is no legitimate law enforcement reason to do so; or (3) Delete any pictures or recordings from observer's recording device or order observer to delete such pictures or recordings, Patrol Guide Procedure 203-29 (BR 08).

In addition to critical speech of police officers falling short of probable cause to arrest under the obstruction of justice statute, the Supreme Court has held that an arrest on the basis of such speech is unconstitutional: "The Constitution does not allow such speech to be made a crime. The freedom of individuals verbally to oppose or challenge police action without thereby risking arrest is one of the principle characteristics by which we distinguish a free nation from a police state," Wilson v. Kittoe, 229 F. Supp. 2d 520, 2002 (BR 09).

A person is guilty of disorderly conduct when, with an intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he or she: (1) engages in fighting or in violent, tumultuous, or threatening behavior; (2) makes unreasonable noise; (3) uses abusive or obscene language, or makes an obscene gesture; (4) without lawful authority, disturbs any lawful assembly; (5) obstructs vehicular or pedestrian traffic; (6) congregates with other persons in a public place and refuses to comply with an order to disperse; or (7) creates a hazardous or physically offensive condition, New York Penal Law § 240.20 (BR 10).

A Terry Stop/Level 3 encounter is any encounter between a civilian and a uniformed member of the service in which a reasonable person would not feel free to disregard the officer and walk away. A Level 3 encounter may take place even without the threat or use of physical force by the officer. Encounters involving nothing more than commands or accusatory questions can rise to the level of a stop, provided that the commands and questions would lead a reasonable person to conclude that she/he was not free to terminate the encounter. A stop may be conducted only when a police officer has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor, Patrol Guide Procedure 212-11 (BR 11).

§ 87(2)(b) and PO Caldararo's statements are consistent that § 87(2)(b) approached the officers

PO Caldararo testified that she requested § 87(2)(b) ID to write him a summons for disorderly conduct. PO Caldararo did not remember if she requested his ID before or after she took his phone. § 87(2)(b) did not do anything else besides the yelling, screaming, and causing a scene that fell into disorderly conduct. During this second interaction, an unknown number of passersby started to stop and stare at what was going on. The passersby did not do anything else. PO Caldararo did not remember if she told § 87(2)(b) that he was going to jail or that he was going to be arrested. PO Caldararo stated that § 87(2)(b) could have been arrested for disorderly conduct for his behavior or for OGA, since he refused to provide his ID at PO Caldararo's request.

PO Zahrieh did not remember if PO Caldararo told § 87(2)(b) that he could be arrested for anything, or that he was "going to jail." PO Zahrieh did not know if § 87(2)(b) committed any violations.

§ 87(2)(b) testified that after PO Caldararo took his phone, she stated that he was less than six feet from her and then grabbed his right forearm for a minute. Cellphone video captures the portion of the incident where PO Caldararo states that § 87(2)(b) is less than six feet away from her. PO Caldararo backs up while lightly pushing his right forearm away from her with her left hand and telling § 87(2)(b) to get away from her. Given that the cellphone video corroborates that PO Caldararo told § 87(2)(b) to back away and touched his right forearm, but shows minimal physical contact, the investigation discredits § 87(2)(b) statement that PO Caldararo grabbed his forearm for a minute. § 87(2)(b) verbal reaction in the video shows that he believed the touch was inappropriate, but as the video confirmed that PO Caldararo briefly touched § 87(2)(b) the investigation determined that excessive force was not used.

§ 87(2)(b) stated that PO Caldararo requested his ID and threatened to arrest him. PO Caldararo and PO Zahrieh did not remember if PO Caldararo told § 87(2)(b) he was going to jail or that he would be arrested. The cellphone footage captures PO Caldararo requesting ID, but not the threat of arrest. However, § 87(2)(b) stated that PO Caldararo requested his ID multiple times, so it is possible that the video does not capture the instance where a request for ID was followed by a threat of arrest. PO Caldararo testified that he could have been arrested for disorderly conduct which prompted her to request his ID.

§ 87(2)(g) cellphone footage captures the part of the interaction in which § 87(2)(b) alleged force and depicts a brief touch to his arm and not a grab as § 87(2)(b) alleged. § 87(2)(g)

§ 87(2)(g)

Allegation F—Discourtesy: PO Kristin Caldararo spoke discourteously to § 87(2)(b)
Allegation G—Discourtesy: PO Kristin Caldararo acted discourteously to an individual.

At the 0:04 mark in cellphone video (BR 14) filmed by § 87(2)(b) daughter, who is unidentified, PO Caldararo says to § 87(2)(b) "You fucking loser," before she turns around and walks back to where the interaction began. At the 0:10 mark, PO Caldararo is briefly out of frame, and as she walks back into the frame, her left arm is angled upward for a brief moment.

§ 87(2)(b) testified that as he walked away from PO Caldararo after she returned his phone to him, she continued to follow § 87(2)(b) and his children through the parking lot. PO Caldararo pointed

her middle finger at § 87(2)(b) daughter. PO Caldararo stopped following them in front of the LA Fitness, and walked back toward PO Zahrieh, who also walked away with her.

A statement was not obtained from § 87(2)(b) daughter, as § 87(2)(b) did not want her to participate in the investigation.

PO Caldararo testified that she used her discretion and decided not to arrest or issue a summons to § 87(2)(b) since tensions were high and she wanted to de-escalate the situation. PO Caldararo returned § 87(2)(b) phone to him and followed § 87(2)(b) through the parking lot to make sure he left. PO Caldararo did not remember if she did or said anything as she followed § 87(2)(b) PO Caldararo did not recall telling § 87(2)(b) that he was a “fucking loser.” PO Caldararo may have used profanity in the interaction, but she did not remember anything specific that she said. PO Caldararo did not recall pointing her middle finger at the female who was with § 87(2)(b)

PO Zahrieh went with PO Caldararo as she followed § 87(2)(b) out of the parking lot. PO Zahrieh did not know if PO Caldararo pointed her middle finger at § 87(2)(b) or another individual, because he was behind her. PO Zahrieh did not know if § 87(2)(b) committed any violations as he walked out of the parking lot. PO Zahrieh did not recall if PO Caldararo used profanity.

DAO-DCT Case number 2017-17005 states that the tribunal has held that profane remarks, made during stressful situations or while an officer is trying to get a chaotic situation under control, are not misconduct (**BR 04**). Officers are prohibited from using discourteous or disrespectful remarks regarding another person’s ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability, Patrol Guide Procedure 203-09 (BR 05). The NYPD is committed to accomplishing its mission by treating every citizen with compassion, courtesy, professionalism and respect. Officers pledge to value human life, respect the dignity of each individual and render our services with courtesy and civility, Patrol Guide Procedure 200-02 (BR 06).

PO Caldararo and PO Zahrieh stated that they did not recall if PO Caldararo used profanity, and when the video was shown to The video captures PO Caldararo call § 87(2)(b) a “fucking loser” as he walks out of the parking lot and she turns around. This occurs at the conclusion of the incident as § 87(2)(b) left the interaction. and PO Caldararo’s use of the phrase was not in the midst of a stressful situation or for any law enforcement purpose and cannot be justified according to the standards set by DCT Case number 2017-17005.

The video captures PO Caldararo’s arm held up for a moment, but it does not capture her pointing her middle finger. Although § 87(2)(b) stated that the action captured in the video was PO Caldararo pointing her middle finger at his daughter, he did not want his daughter to provide a statement. PO Caldararo did not recall pointing her middle finger at an individual, and PO Zahrieh did not know if she did.

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
 - [REDACTED]
- PO Caldararo has been a member-of-service for 15 years and has been a subject in three CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- On February 10, 2021, a FOIL request for Notice of Claim was submitted to the New York City Office of the Comptroller, and the results will be attached upon receipt (**BR 21**).

Squad No.: 6

Investigator:	<u>Lily Kim</u>	<u>Investigator Lily Kim</u>	<u>2/23/2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Peña</u>	<u>IM Jessica Peña</u>	
	<u>2/23/2021</u>		
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date